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County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV33542 Hearing Date: June 25, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA¿¿

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14¿

¿

DICKIE RAY CAGLE and BRUCIE JANE CAGLE,

Plaintiffs,¿

v.

3M COMPANY, et al.,

¿

Defendants.¿¿

Case No. 25STCV33542

¿¿¿¿

Hearing Date: June 25, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFFS' MOTION FOR TRIAL PREFERENCE

I.

Background

On November 13, 2025, Plaintiffs Dickie Ray and Brucie Jane Cagle filed their complaint for personal injury alleging Mr. Cagle developed pleural disease and lung cancer from occupational exposure to asbestos and asbestos-containing products. On May 28, 2026, Plaintiffs filed this motion for trial preference under Code of Civil Procedure section 36 subdivisions (a) and (e). Plaintiffs argue that Mr. Cagle is over the age of 70 and his health is such that preference is necessary to prevent prejudicing Plaintiffs' interest in the litigation. Plaintiffs request a trial be set 120 days from the date of the hearing on this matter.

On June 11, 2026, Defendants Mechanical Drives & Belting, DCO LLC, Pneumo Abex LLC, and Deere & Company filed oppositions. On the same day, Defendants Daimler Truck North America LLC, Kaiser Gypsum Company, Inc., Mack Trucks, Inc., Lear Siegler Diversified Holdings Corp., and Caterpillar Inc. filed joinders. On June 16, 2026, Defendant Mechanical Drives filed a notice of withdrawal.

In the joint opposition by Pneumo Abex and DCO (collectively, "DCO"), the parties do not dispute that Mr. Cagle is above the age of 70 or that he has a substantial interest in the litigation. Instead, DCO contend that Plaintiffs have not presented sufficient evidence, competent or current medical evidence, that Mr. Cagle's health is such that preference is necessary to prevent prejudicing Plaintiffs' interest in the litigation. DCO also ask the court to impose conditions on discovery and pre-trial motions to protect Defendants' due process rights.

Deere argues in its opposition that preference is not mandatory and a grant would not serve the interest of justice. Alternatively, Deere argues that if the court were to grant preference, specific conditions should be imposed, such as for trial date timing and discovery considerations.

On June 17, 2026, Plaintiffs filed their reply. Plaintiffs maintain that they satisfied their initial burden on this motion. They further argue that due process concerns do not give rise to denial.

Plaintiffs presented sufficient evidence to show that Mr. Cagle's health is such that preference is necessary to prevent prejudicing Plaintiffs' interest in the litigation. Therefore, Plaintiffs' motion for trial preference is granted. Trial is set for Monday, October 19, 2026. The Final Status conference is set for Monday, October 5, 2026. A status conference for the proposed trial setting order is set for Thursday, July 16, 2026 at 9 a.m.

II.

Discussion

A.

Legal Standards

A party who is over 70 years old may petition the court for a preference for trial date, which the court shall grant if it makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) An affidavit submitted in support of a motion for preference under this subdivision may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. (Id., § 36.5.)

Moreover, the court may also grant a motion for preference in its discretion supported by a showing that satisfies the court that the interests of justice will be served by granting the preference. (Id., § 36, subd. (e).)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record."

(Id., § 36, subd. (f).)

"Any continuance shall be for no more than 15 days and no more than one

continuance for physical disability may be granted to any party.” (Ibid.)

B.

Analysis

Plaintiff Dickie Ray Cagle

(“Cagle”) is seventy-four years old and was diagnosed with Chronic Lymphocytic Leukemia in October 2020. (Gold Decl., ¶¶ 7,

8(a), Exhs. A-C.) On August 3, 2021, a biopsy of Mr. Cagle’s left lung nodule resulted in a lung cancer diagnosis. (Id., ¶ 8(b), Exh. I.) A PET Scan on February 22, 2024, showed “mediastinal lymph nodes (measuring up to 1.1 cm), intense sigmoid colon FDG focus, left lung volume loss, scarring, pleural thickening and scattered areas of reticulation/fibrosis in both lungs, and subpleural bullous features in the lower lobe of his right lung.” (Id., ¶ 8(f), Exh. G.) Biopsied tissue from October 2025 “identified a well to moderately differentiated leukemia-related lung adenocarcinoma.” (Id., ¶

8(g).) On March 4, 2026, Mr. Cagle was admitted to the hospital with “acute respiratory failure and lung abscess” and was treated for pneumonia. (Id., ¶ 8(j).) He was admitted to

the hospital again four days later for “severe shortness of breath, tachycardia, fever, chills, weakness and productive cough.” (Id., ¶ 8(k), Exh. J.) A CT-Scan taken on the same day revealed chest abnormalities and “multiple prominent and enlarged bilateral inguinal, iliac chain, retroperitoneal, periportal and distal para-esophageal lymph nodes,” which had worsened since his 2023 PET scan. (Id.) Mr. Cagle has undergone chemotherapy multiple times over this period of time. Mr. Cagle continues to be treated for leukemia, lung cancer, and possible colon cancer. (Id., ¶

8(m), Exh. G.) He has also been advised by his physicians that there is no cure for either his leukemia or his lung cancer. (Id., Exh. A; D. Cagle Decl., ¶ 3.)

Plaintiffs’

attorney of record Cecil B. Crain also described their observations of Mr. Cagle’s health during four separate visits spanning several months and lasting approximately two hours each:

“[d]uring each meeting, Mr. Cagle was weak and struggled to form complete sentences and maintain a conversation. I noticed that his ability to speak and maintain a conversation was getting worse each visit. He also experienced constant coughing and difficulty breathing, that kept getting

worse every time I visited him. After my second visit, Mrs.

Cagle called to let me know that Mr. Cagle had been admitted to the hospital with pneumonia. On my last visit with him on April 22nd, I noticed that his coughing and ability to speak was getting worse. I also noticed that his fatigue was much worse than my previous visits. Following my last visit on April 22, Mrs. Cagle let me know that Mr. Cagle had been diagnosed with tuberculosis.”

(Crain Decl., ¶¶ 3-4.) Counsel also states that Mr. Cagle’s “overall health declined with each successive visit,” and that he has not sat for a deposition yet due to his hospitalizations and health challenges. (Id., ¶ 5.)

As

noted, only DCO and Deere substantively oppose Plaintiffs’ motion. In their joint opposition, DCO argue:

“Plaintiffs have not provided sufficient evidence that his health condition justifies a preferential trial setting. The only evidence submitted in support of the motion is a declaration from Plaintiffs’ counsel (Declaration of Cecil B. Crain). That declaration is anecdotal, speculative, and not based on competent medical evidence. The declaration references subjective impressions about Mr. Cagle’s speech patterns and breathing difficulties. Counsel also attaches medical records, which say nothing about Mr. Cagle’s declining health or his inability to participate in litigation. Also, no declaration from a treating physician or medical provider was submitted...It would not be an undue burden for Plaintiffs to submit current medical records or a declaration from Mr. Cagle’s treating physician to support the motion. The absence of such evidence is telling.”

(DCO Opp., at p. 3.)

Deere does not argue in its opposition that Plaintiffs have not provided sufficient evidence of Mr. Cagle’s health but rather argues that preference is not mandatory in asbestos litigation because it is a coordinated proceeding in Los Angeles County and Code of Civil Procedure section 404 applies. (Deere Opp., at pgs. 1-4 [The Isaak court, on the other hand, found that ‘[w]hen the two statutes are read together, they mean that the Judicial Council was authorized to enact rule 3.504, which grants trial courts the ability to proceed without strictly

following laws governing civil actions, including section 36.' (Isaak v. Superior Court (2002) 73 Cal.App.5th 792, 800 [emphasis added].) Preference is therefore not mandatory under any provision in coordinated proceedings where "the prescribed manner of proceeding cannot, with reasonable diligence, be followed in a particular coordination proceeding". (Id. at 797-798 [quoting Cal. Rule of Court, Rule. 3.504(c)].) Instead, "the assigned judge may prescribe any suitable manner of proceeding that appears most consistent with those statutes and rules." (Isaak, supra, 73 Cal.App.5th at 797-798 [quoting Cal. Rule of Court, Rule. 3.504(c)].) The LAOSD Asbestos Cases coordinated proceeding abounds with similar provisions. (See General Asbestos Litigation Case Management Order entered in LAOSD Asbestos Cases JCCP No. 4674 on July 8, 2022 ['LAOSD General Asbestos CMO'].) Deere argues that because preference is not mandatory here, the court should deny this motion because of due process concerns, at least until Mr. Cagle's deposition is completed. (Id., at pgs. 4-5.)

In reply, Plaintiffs maintain that they satisfied their burden on this motion. First, Plaintiffs claim that DCOs' assertion that Plaintiffs only submitted Crain's declaration as evidence of Mr. Cagle's condition is false, because Plaintiffs also submitted Mr. Gold's, Mr. Cagle's, and Mrs. Cagle's declarations as well as Mr. Cagle's medical records. (Reply at p. 1.) Plaintiffs also argue that Mr. Gold's and Mr. Crain's declarations meet the requirements under Code of Civil Procedure section 36.5, subdivision (a). (Id.) Second, Plaintiffs argue that DCO "ignores the fact" that Mr. Cagle "is suffering from terminal lung cancer along with a myriad of other conditions including leukemia, severe neuropathy, stage III chronic kidney disease, a pre-cancerous colon condition, and most recently pneumonia, and tuberculosis, all of which that have resulted in a rapid decline in his health since late 2025." (Reply at p. 2.) Plaintiffs contend that Mr. Cagle is "in constant pain, overwhelmingly fatigued, short of breath, even at rest, weak, unable to sleep well, without appetite, and increasingly confined to bed for much of each day;" "he is now largely homebound, dependent on a walker or other support to move around, unable to safely go out alone, and no longer capable of participating in the daily activities that he enjoyed." (Id.)

As to Deere's Isaak argument, Plaintiffs argue the case is distinguishable from the facts here. (Isaak, supra, 73 Cal.App.5th at p. 792.) Plaintiffs contend that the "crucial difference" is that "Discovery is well underway. The issues of causation in asbestos exposure have been well litigated. This is not

a new area that would require extensive discovery or witness preparation. Furthermore, Plaintiffs are willing to make concessions such as shortened time to respond to discovery, and to file Motions for Summary Judgment. As such, Isaak is not applicable because this is not a case where there is no possibility the case could not be tried in 120 days.” (Reply at pgs. 2-3.)

The evidence before the court is sufficient to establish that Plaintiffs are entitled to a trial preference under Code of Civil Procedure section 36, subdivision (a). There is no dispute that Mr. Cagle’s age is above the threshold required under the statute, or that he has a substantial interest in the litigation. The only issue in dispute is whether his health is such that Plaintiffs’ interest in the litigation is likely to be prejudiced in the absence of trial preference. The court finds that the evidence presented is sufficient to satisfy this burden. The declarations of Mr. Crain, Mr. Gold, and attached documentation are sufficient to show that Mr. Cagle’s current symptoms and the likely progression of his symptoms given the absence of viable treatment will impact his testimonial capacities to his prejudice. For instance, Mr. Crain describes Mr. Cagle’s current symptoms as significantly affecting his ability to maintain a conversation. (Crain Decl. ¶ 3 [“During each meeting, Mr. Cagle was weak and struggled to form complete sentences and maintain a conversation. I noticed that his ability to speak and maintain a conversation was getting worse each visit. He also experienced constant coughing and difficulty breathing, that kept getting worse every time I visited him.”].) This, paired with the evidence that Mr. Cagle lacks viable treatment options and his other serious medical conditions, is sufficient to persuade the court that his health is such that Plaintiffs’ interest in the litigation will be prejudiced without trial preference.

Moreover, as Plaintiffs note, under the required standard for Code of Civil Procedure section 36, subdivision (a), Plaintiffs were not required to present a declaration from a physician regarding Mr. Cagle’s health, let alone a declaration from a treating physician. (Code Civ. Proc., § 36.5 [“An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party

seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36."].) Accordingly, Plaintiff's motion for trial preference is granted.

Both substantive

oppositions also request that the court impose certain conditions as part of the trial setting order including, but not limited to, shortening the motion for summary judgment and/or adjudication notice period, ordering Plaintiffs' and third-party witnesses' immediate availability for depositions, and ordering Plaintiffs to provide any outstanding authorizations. Defendants do not cite any authority for the proposition that the court can impose such conditions upon the parties as part of an order granting trial setting preference. The court expects the parties to meet and confer regarding the appropriate conditions for a proposed trial setting order. In reply, Plaintiffs indicate that they are willing to agree to certain stipulations and will meet and confer with Defendants on a date for Mr. Cagle's deposition once he is physically able. (Reply at p. 3.) If there are disputes as to the appropriate conditions, the court will rule on these disputes at the status conference regarding the trial setting order.

III.

Conclusion

Plaintiffs'

motion for trial preference is granted. The parties are to meet and confer regarding appropriate conditions for a trial setting order. The court sets trial for Monday, October 19, 2026, at 9:00 A.M. The Final Status conference is set for Monday, October 5, 2026 at 9:00 A.M. A status conference for the proposed trial setting order is set for Thursday, July 16, 2026 at 9 a.m. Plaintiffs shall confer with Defendants and give notice of this ruling.